

KARNATAKA ACT NO 29 OF 2013
THE KARNATAKA STAMP (AMENDMENT) BILL, 2013
Arrangement of Sections

Sections:

1. Short title and commencement
2. Amendment of Schedule

STATEMENT OF OBJECTS AND REASONS

Amending Act 29 of 2013.- In order to promote the growth of housing activities through documents of Joint Development Agreement and its consequent power of attorney it is considered necessary to reduce the stamp duty payable on one document to two hundred rupees only, if the other document is duly stamped in accordance with law, by amending the Karnataka Stamp Act, 1957 (Karnataka Act No. 34 of 1957).

Hence the Bill.

[L.A. Bill No. 15 of 2013, File No. Samvyashae 29 Shasana 2013]

[Entry 44 of List III of the Seventh Schedule to the Constitution of India.]

KARNATAKA ACT NO 29 OF 2013

(First Published in the Karnataka Gazette Extra-ordinary on the eleventh day of March, 2013)

THE KARNATAKA STAMP (AMENDMENT) BILL, 2013

(Received the assent of the Governor on the fifth day of March, 2013)

An Act further to amend the Karnataka Stamp Act, 1957.

Whereas it is expedient further to amend the Karnataka Stamp Act, 1957 (Karnataka Act 34 of 1957), for the purposes hereinafter appearing ;

Be it enacted by the Karnataka State Legislature in the sixty-fourth year of the Republic of India as follows :-

1. Short title and commencement.- (1) This Act may be called the Karnataka Stamp (Amendment) Act, 2013.

(2) It shall come into force with effect from the first day of April 2013.

2. Amendment of Schedule.- In the Karnataka Stamp Act, 1957 (Karnataka Act 34 of 1957), in the schedule,-

(i) In article 5, in clause (f), in column 3, the following proviso shall be inserted at the end, namely,-

"Provided that, if the proper stamp duty is paid under clause (ea) of Article 41 on the Power of Attorney, executed between the same parties in respect of the same property, the stamp duty payable on such agreement shall not exceed rupees two hundred" ;

(ii) In article, 41 in clause (ea), in column 3, the following proviso shall be inserted at the end, namely,-

"Provided that, if the proper stamp duty is paid under clause (f) of Article 5 on the Agreement, executed between the same parties in respect of the same property, the stamp duty payable on such Power of Attorney shall not exceed rupees two hundred."

By Order and in the name of the Governor of Karnataka

G.K. BOREGOWDA

Secretary to Government,

Department of Parliamentary Affairs and Legislation